

25STCV17076 25STCV17076

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-07-10

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Case Number: 25STCV17076 Hearing Date: July 10, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

SCHWAN COSMETICS GERMANY GMBH & CO. KG,

Plaintiff,

vs.

FRECK YOURSELF, INC.,

Defendant.

Case No.:

25STCV17076

Hearing Date:

July 10, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] RULING

RE:

REVIEW OF

DEFAULT JUDGMENT PACKAGE

Plaintiff

Schwan Cosmetics Germany GmbH & Co. KG ("Schwan") appears to request entry of default judgment against Defendant Freck Yourself, Inc. ("Defendant") in the total amount of \$132,710.73 as demanded in the complaint.

The Court notes various defects with the submitted package.

First,

Schwan filed multiple CIV-100 forms with different addresses for Defendant. The address on the most recently filed CIV-100 form does not match where service was effectuated. Schwan does not explain the reason for these discrepancies.

Second,

Schwan does not check the box declaring Defendant's nonmilitary status. ((Cal. Rules of Court, rule 31800(5).))

Third,

Schwan's CIV-100 form has multiple issues. It is not signed "under penalty of perjury" for sections 7 and 8. Under section 7, the total amount requested says \$0.00, which does not reflect the request for \$132,710.73. Section 5 of the CIV-100 form is also incomplete.

Fourth, Schwan does not

provide any admissible evidence in support of the requested judgment. ((Id. R., rule 31800(8).)) Although Schwan's counsel submits and authenticates a declaration for the default judgment package, this is inadequate. A declarant must have percipient knowledge to be competent to testify; otherwise, it is inadmissible hearsay. (Evid. Code, § 1200, subds. (a)-(b) ["'Hearsay evidence' is evidence of a statement that was made other than by a witness while testifying at the hearing and that is offered to prove the truth of the matter stated."].) As is the case here, attorney declarants are not usually percipient. Schwan must submit admissible evidence of someone with personal

knowledge to support the requested judgment amount.

The Court notes that Schwan attached various exhibits to the complaint, but these are not authenticated. Without proper authentication, the attached exhibits are not admissible evidence, and the Court cannot consider them. (See Code of Civil Procedure, § 2015.5 [“Whenever, under any law of this state or under any rule, regulation, order or requirement made pursuant to the law of this state, any matter is required or permitted to be supported, evidenced, established, or proved by the sworn statement, declaration, verification, certificate, oath, or affidavit, in writing of the person making the same..., such matter may with like force and effect be supported, evidenced, established or proved by the unsworn statement, declaration, verification, or certificate, in writing of such person which recites that it is certified or declared by him or her to be true under penalty of perjury, is subscribed by him or her, and (1), if executed within this state, states the date and place of execution, or (2), if executed at any place, within or without this state, states the date of execution and that it is so certified or declared under the laws of the State of California.”].) “[D]efault judgment on...claims can be entered only upon proof to the court of the damage sustained.” ((Taliaferro v. Hoogs (1963) 219 Cal.App.2d 559, 560.)

Based on the foregoing, Schwan’s request for default judgment is denied without prejudice. Schwan is ordered to file a new default judgment package. The hearing on the default judgment package is set on _____ at 10:00 a.m. in Dept. 508. Courtesy copies of the default judgment package must be delivered to Dept. 508 concurrently with filing.

DATED: July 10, 2026 _____

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court